

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
April 23, 2026
8:30 AM/1:30 PM

1. FLETCHER C. ALFORD V. SHARI COVINGTON

25FL0047

On February 6, 2026, Petitioner filed a Request for Order (RFO) seeking custody and visitation orders. All required documents were served on February 9, 2026.

Because the RFO was originally filed ex parte, Respondent filed a Responsive Declaration to Request for Order on February 5, 2026.

On April 17th, Petitioner filed a Declaration of Fletcher C. Alford, a Declaration of Attorney, and a Notice of Intent to Present Oral Testimony. The court finds Petitioner's declaration and that of his attorney to be late filed pursuant to Civil Procedure section 1005(b) which states all reply papers are to be filed at least five court days before the hearing date. Section 12c states, "[w]here any law requires an act to be performed no later than a specified number of days before a hearing date, the last day to perform that act shall be determined by counting backward from the hearing date, *excluding the day of the hearing* as provided by Section 12." Cal. Civ. Pro. § 12c. Section 1005(b) in conjunction with Section 12c would have made April 16th the last day for filing and service of a reply declaration therefore these documents are late and have not been considered.

A Declaration of Shari Covington was filed on April 21st. There is no Proof of Service for this document. Instead, there is a Proof of Service for a document identified as "Respondent's Reply to Petitioner's late filed declaration." It is unclear if this is the same document. Given the defect in service, and the untimeliness of this document, the court has not read or considered it.

In addition to the pending ex parte, this matter is before the court for receipt and review of the 3111 report. After reviewing the court's file, it appears the 3111 report has not been completed or filed with the court.

Petitioner is requesting sole legal and sole physical custody of the minors. He asks that Respondent only have visits with the minors as agreed upon by the parties. He further asks that the court order the custody evaluator to expand the scope of his evaluation to include Respondent's recent unexpected health event and an order for Respondent to provide Petitioner and the custody evaluator any medical information reasonably necessary to understand the nature, diagnosis, prognosis and impact of Respondent's recent hospitalization.

Respondent asks that the current custody orders remain in place but she does not object to review of the issue through the existing 3111 evaluation.

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The request to expand the scope of the 3111 evaluation is granted. Respondent is ordered to provide Petitioner, Petitioner's counsel, and the custody evaluator any medical information which is reasonably requested by the evaluator to understand the nature, diagnosis, and impact of Respondent's recent hospitalization on her ability to safely and effectively parent the children. All prior orders regarding custody and visitation remain in full force and effect pending the completion of the 3111 evaluation.

Given that the parties are set for trial in August on the issues of custody, the court is not setting a further review hearing for receipt and review of the 3111 report.

Petitioner is directed to prepare the Findings and Orders After Hearing (FOAH); however, this order is effective immediately upon the court's adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.

TENTATIVE RULING #1: THE REQUEST TO EXPAND THE SCOPE OF THE 3111 EVALUATION IS GRANTED. RESPONDENT IS ORDERED TO PROVIDE PETITIONER, PETITIONER'S COUNSEL, AND THE CUSTODY EVALUATOR ANY MEDICAL INFORMATION WHICH IS REASONABLY REQUESTED BY THE EVALUATOR TO UNDERSTAND THE NATURE, DIAGNOSIS, AND IMPACT OF RESPONDENT'S RECENT HOSPITALIZATION ON HER ABILITY TO SAFELY AND EFFECTIVELY PARENT THE CHILDREN. ALL PRIOR ORDERS REGARDING CUSTODY AND VISITATION REMAIN IN FULL FORCE AND EFFECT PENDING THE COMPLETION OF THE 3111 EVALUATION.

GIVEN THAT THE PARTIES ARE SET FOR TRIAL IN AUGUST ON THE ISSUES OF CUSTODY, THE COURT IS NOT SETTING A FURTHER REVIEW HEARING FOR RECEIPT AND REVIEW OF THE 3111 REPORT.

PETITIONER IS DIRECTED TO PREPARE THE FINDINGS AND ORDERS AFTER HEARING (FOAH); HOWEVER, THIS ORDER IS EFFECTIVE IMMEDIATELY UPON THE COURT'S ADOPTION OF THE TENTATIVE RULING AND IS NOT CONDITIONED ON THE PREPARATION OF THE FOAH.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO LEWIS V. SUPERIOR COURT*, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON

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**THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE
8.05.07.**

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2 & 3. KARA BLANKENSHIP V. ADAM BLANKENSHIP

25FL0210 & 25FL0233

On March 5, 2025, Petitioner filed a Request for Domestic Violence Restraining Order (DVRO). A Temporary DVRO was granted on July 1, 2025 naming Petitioner and the children as protected parties. The parties were ordered to attend Child Custody Recommending Counseling (CCRC) and a review hearing was set on the issues of custody and visitation. Thereafter, on June 30, 2025, Petitioner filed a Request for Order (RFO) also seeking custody and visitation orders. On October 2, 2025, Minors' Counsel filed an ex parte application for emergency visitation orders, seeking a suspension in Respondent's parenting time.

On January 15, 2026, the parties appeared before the court for hearing on all issues. At that time the parties reached agreements on custody and visitation with a review hearing set for the present date. The parties agreed to continue Petitioner's request for child and spousal support and Petitioner's request for attorney's fees and costs to join with the review hearing.

On April 7, 2026, Minors' Counsel filed and served Minors [sic] Counsel Statement.

The Department of Child Support Services filed and served its Responsive Declaration to Request for Order on April 7, 2026.

On April 13th, Respondent filed and served an Income and Expense Declaration, a Responsive Declaration to Request for Order, and two Memorandums of Points and Authorities.

Also on April 13th, Petitioner filed and served her Income and Expense Declaration, a Declaration of Attorney Joshua Stutz, and a Supplemental Declaration of Petitioner.

TENTATIVE RULING #2 & 3: PARTIES ARE ORDERED TO APPEAR FOR THE HEARING.

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4. JENNIFER DANIELS V. JOSE CARRERO

PFL20170812

On February 5, 2026, Petitioner filed an Order to Show Cause and Affidavit for Contempt (OSC) alleging violations of the court's custody and visitation orders. Respondent was personally served with the RFO the same day.

The parties are ordered to appear for the arraignment.

TENTATIVE RULING #4: THE PARTIES ARE ORDERED TO APPEAR FOR THE ARRAIGNMENT.